

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 9, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 25CV01396

MARTINEZ-ROJAS v. WANG, et al.

**(UNOPPOSED) DEFENDANTS KAREN WANG M.D. AND DIGNITY
HEALTH’S MOTION FOR SUMMARY JUDGMENT**

Defendants Karen Wang, M.D. and Dignity Health’s motion for summary judgment is granted. Plaintiff failed to oppose the motion and thereby failed to establish that any disputed material facts exist as to her cause of action for professional negligence. Plaintiff’s complaint will be dismissed and judgment for defendants may be entered.

I. SUMMARY JUDGMENT STANDARD

In a summary judgment motion, the court must determine from the evidence presented that “there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law....” (Code Civ. Proc. §437c, subd. (c) (§ 473c).) In making this determination, the court may rely on “affidavits, declarations ... and matters of which judicial notice shall or may be taken.” (§ 437c, subd. (b).) The plaintiff “may not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.” (§ 437c, subd. (p)(2).)

The court’s sole function on a motion for summary judgment is issue-finding, not issue determination. To be material, the fact must relate to some claim or defense in issue under the pleadings and be in some way essential to the judgment; if proved, it could change the outcome of the case. “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in

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accordance with the applicable standard of proof...” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) If there is a single such issue, the motion must be denied. (*Versa Tech., Inc. v. Superior Court* (1978) 78 Cal.App.3d 237, 240.)

A. *Shifting burdens*

Defendants moving for summary judgment bear the burden of persuasion that one or more elements of the cause of action in question cannot be established or that there is a complete defense thereto. In general, a moving defendant must present evidence that, if uncontradicted, “would constitute a preponderance of evidence that an essential element of the plaintiff’s case cannot be established...” (*Kids’ Universe v. In2Labs* (2002) 95 Cal.App.4th 870, 879.) If defendant fails to meet this burden, its motion must be denied and plaintiff need not make any showing at all. Defendant can show that an essential element of plaintiff’s claim cannot be established by presenting evidence (discovery responses, deposition testimony, etc.) that plaintiff does not possess *and* cannot reasonably obtain needed evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891; *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 855, fn. 23.)

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. If the moving party carries this burden, it causes a shift and the opposing party is then subject to its own burden of production to make a prima facie showing that a triable issue of material fact exists. (*Id.* at 850.) Each material fact must have a citation to supporting evidence. (§ 437c, subd. (b)(1).) If a triable issue is raised as to any of the facts in the separate statement, the motion may be denied. (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252.) Opposition declarations are to be liberally construed while the moving party’s evidence is strictly scrutinized. (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 768.)

B. *Separate statement requirements*

“The separate statement ‘is an indispensable part of the summary judgment or adjudication process’ because it plainly identifies factual issues and allows the trial court to determine whether a trial is required to establish those facts and resolve the dispute. [Citations.] ‘Opposition separate statements must cite to facts and evidence for the evidence to be considered by the court.’ [Citations.]” (*Champlin/GEI Wind Holdings, LLC v. Avery* (2023) 92 Cal.App.5th 218, 226.)

Without a separate statement with references to supporting evidence, it is impossible to demonstrate the existence of disputed facts. (*Bacoka v. Best Buy Stores, L.P.* (2021) 71 Cal.App.5th 126, 131; *Blackman v. Burrows* (1987) 193 Cal.App.3d 889, 894; Cal. Rules of Court, rule 3.1350(h).) “Admissible evidence is required to show that disputed issues of material fact exist. [Citation.] ‘Responsive evidence that ‘gives rise to no more than mere speculation’ is

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not sufficient to establish a triable issue of material fact.’ [Citations.]” (*Champlin/GEI Wind Holdings, LLC v. Avery, supra*, 92 Cal.App.5th at p. 226.)

II. MATERIAL FACTS ARE NOT IN DISPUTE

Plaintiff’s complaint alleges one cause of action for professional negligence related to failure to diagnose and provide adequate diagnostic care. To establish summary judgment, defendants present 18 separate material facts on two separate issues, supported by plaintiff’s medical records and the declarations of Drs. Wang and John Wachtel, expert for defendants. These facts establish that plaintiff cannot support her medical negligence claim. Based on them, defendants have carried their burden of production.

“In any medical malpractice action, the plaintiff must establish: (1) the duty of the professional to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the negligent conduct and the resulting injury; and (4) actual loss or damage resulting from the professional’s negligence.” (*Hanson v. Grode* (1999) 76 Cal.App.4th 601, 606.)

The duty owed by a medical provider is established by the standard of care followed by other medical providers in the same or similar community. “No medical malpractice claim is viable without expert testimony establishing the appropriate standard of care.” (*William v. Prida* (1999) 75 Cal.App.4th 1417, 1424.) Where the moving party produces competent expert opinion declarations showing that there is no triable issue of fact on an essential element of the opposing party’s claim, the opposing party’s burden is to produce competent expert opinion declarations to the contrary. (*Ochoa v. Pacific Gas & Elec. Co.* (1998) 61 Cal.App.4th 1480, 1487.)

Here, defendants provide the declaration of John Wachtel, MD, board certified gynecologist and clinical professor at Stanford University Medical School. Dr. Wachtel was asked to review plaintiff’s treatment and care provided by defendants to assess whether they complied with the standard of care, and whether any act or omission on their part caused plaintiff’s alleged injury. The opinions set forth by Dr. Wachtel are based upon his review of the pleadings, Dr. Wang’s declaration, plaintiff’s medical records, and his education, training and experience. (Wolinsky Declaration, Exhibit O.) Based upon Dr. Wachtel’s review of the above materials, and based on his training, education and experience, it is his opinion that the care and treatment provided to plaintiff was at all times and in all respects, within the standard of care. Moreover, it is his opinion, to a reasonable degree of medical probability, that no act or omission to act on the part of Dr. Wang was a substantial factor in causing plaintiff’s alleged injury. (*Id.* at ¶¶ 5, 7.)

It is Dr. Wachtel’s opinion based upon his education, training, experience, review of the medical records, and review of the other materials provided to him that the treatment provided to

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plaintiff by Dr. Wang at all times, and in all respects, met or exceeded the standard of care between January 18, 2024 to January 26, 2024. (Id. at ¶ 8.) Further, the allegation that defendants were negligent for failing to rule out or diagnose endometriosis, interstitial cystitis, and bladder pain syndrome has no merit. (Id. at ¶ 9.) It is Dr. Wachtel's opinion that there were appropriate and sufficient tests and imaging done prior to the surgery and that informed consent was received prior to the surgery. (Id.) It is Dr. Wachtel's opinion that Dr. Wang timely performed a laparoscopic cystectomy on February 6, 2024. (Id. at ¶ 10.) Informed consent had been obtained prior to the surgery. (Id.) It is Dr. Wachtel's opinion that Dr. Wang's performance of the procedure met the standard of care. (Id.) It is Dr. Wachtel's opinion that Dr. Wang's March 1, 2024 post-operative appointment with the patient met the standard of care and that a short eleven-day delay in that appointment did not breach the standard of care and had no impact on plaintiff's condition, treatment received, or eventual outcome. (Id. at ¶ 11.) The March 1, 2024 records indicate that Dr. Wang discussed the operative results, pathology, and photographs of the procedure with the patient. (Id.) Based on Dr. Wang's custom and practice, as stated in her declaration, plaintiff was informed of the intraoperative rupture. (Id.) A referral was timely made by Dr. Wang to Stanford Gynecologic Oncology for the patient to be seen for evaluation. (Id. at ¶ 12.) A March 7, 2024 addendum to the March 1, 2024 record notes that the authorization for the referral had been approved, the referral was sent to Stanford, and that plaintiff was informed. (Id.) When plaintiff was seen at the Emergency Department at Stanford Hospital on March 3, 2024, two days after her appointment with Dr. Wang, it was noted that the referral to Stanford Gynecologic Oncology had already been made. (Id.)

Defendants have met their burden establishing that there was no breach in the standard of care and no alleged act or omission by defendants caused plaintiff injury.

A. No opposition

Plaintiff failed to file any timely opposition or oppose the separate statement. "Without a separate statement with references to supporting evidence ... it is impossible ... to demonstrate the existence of disputed facts." (Code Civ. Proc., §437c, subd. (b)(3); *Lewis v. County of Sacramento* (2001) 93 Cal.App.4th 107, 115 (disapproved on other grounds by *Kaufman & Broad Communities, Inc. v. Performance Plastering* (2005) 133 Cal.App.4th 26, 41-42; see also *Blackman v. Burrows* (1987) 193 Cal.App.3d 889, 895.)

Plaintiff does not oppose the motion and has not produced any expert opinion to contradict Dr. Wachtel. Accordingly, plaintiff has not established the existence of a triable issue of material fact. The Court is left with no other choice but to grant the instant motion.

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No. 25CV04107

TSAI v. PATRICIO

DEFENDANT PATRICIO'S MOTION FOR LEAVE TO FILE CROSS-COMPLAINT

The motion is granted.

I. BACKGROUND AND MOTION

On December 22, 2025, plaintiff Tsung Tsai (“plaintiff”) filed this complaint for assault and battery against defendant Javier Patricio (“defendant”). The complaint alleges plaintiff and defendant both worked at Golden China restaurant. (Compl. at ¶¶ 8-9.) Plaintiff and defendant engaged in a physical altercation; plaintiff asserts defendant lost his temper and violently hit him. (Compl. at ¶ 11.) Plaintiff seeks punitive and compensatory damages. Defendant was served with the complaint on December 29, 2025; default was entered on February 2, 2026, and then set aside on February 24, 2026, by stipulation and order. On April 21, 2026, plaintiff, self-represented, filed an answer to the complaint.

On April 30, 2026, defendant retained counsel and filed this motion for leave to file a cross-complaint on May 22, 2026, pursuant to Code of Civil Procedure section 426.50. Defendant argues he also sustained injuries because of the altercation and that plaintiff intentionally threw hot liquid onto him. Defendant argues his causes of action arise from the same incident as plaintiff’s complaint and involve the same witnesses, parties, and evidence. Defendant filed a declaration stating that he did not understand that he needed to formally file a cross-complaint to pursue his claims and that he suffered serious burns because of the incident. Defendant attaches a proposed cross-complaint against Tsai for battery, assault, intentional infliction of emotional distress, and negligence. He seeks damages, including punitive.

Plaintiff opposes, arguing that defendant did not establish good faith in delaying to file the cross-complaint. Plaintiff also contends he will suffer prejudice if leave is granted because defendant’s cross-complaint will “substantially expand the scope of discovery” (Opp. at p. 4.)

II. LEGAL STANDARDS AND DISCUSSION

The Code of Civil Procedure 426.50, “[a] party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the